

HOUSE No. 2002

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to parental visitation and custody for children of rape victims.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 2002

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2002) of Alyson M. Sullivan-Almeida relative to parental visitation and custody for children of rape victims. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1771 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to parental visitation and custody for children of rape victims.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection (a) of section 3 of chapter 209C of the General Laws, as appearing in the
2 2022 Official Edition, is hereby amended by striking out the last sentence and inserting in place
3 thereof the following sentence:-

4 No court shall make an order providing visitation rights to a parent who was convicted of
5 rape, under sections 22 to 23B, inclusive, of chapter 265 or sections 2, 3, 4 or 17 of chapter 272,
6 and is seeking to obtain visitation with the child who was conceived during the commission of
7 that rape, unless a visitation or custody action is filed or initiated by the child conceived of that
8 rape who: (i) has then reached the age of 18 or (ii) is adjudicated as emancipated from the other
9 parent of the child.